

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 1

Present: Shri Hari Kishan, Senior Prosecutor for SFIO along-with Shri Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO and Sh. Shubham Aggarwal Advocate.

Accused Vivek Harivasi (115) Surender (140) on interim bail granted by Hon'ble Apex Court vide orders dated 17.12.2020 and 29.10.2021 respectively and present in person.

Accused Leena Harivassi (146) on bail and present in person and Damyanti Bhandari (179) not present but represented by Sh. Vivek Tanwar, Advocate and Sh. Sanjay Gupta, Advocate.

, Vimal Sharma (147), Vijay Shukla (149), 154 (through counsel), Ramlal Arya (158), in person Hemant Kumar (159), Parveen Kumar (161), Ravi Kr. Tak (166), Raj Kumar Modi (176), accused 182 to 186 in person being on bail.

Accused Mahesh Dutt Sharma (No. 178) in person represented by Sh. J.H. Khan, Advocate. Interim protection granted by Hon'ble High Court vide order dated 10.08.2020, which has been continued vide last order dated **24.11.2022** till **31.01.2023**.

Accused Akshat Singh (No. 136) on bail represented by Sh. Vishal Gupta, Advocate.

Accused Abhay K. Shah (No. 127) not present but represented by Ms. Manisha Singh, Advocate. Anticipatory bail is pending for consideration before Hon'ble High Court.

Accused Shiv Raj Sharma (No. 160) not present but represented by Sh. Anil Kumar Yadav, Advocate.

Accused Hemant Kumar Jain (No. 159) on bail represented by Ms. Sunita Saini, Advocate.

AR Kanak Krishi of accused Company (No. 106) not present but represented by Sh. Nitish Bhardwaj, Advocate.

AR Devender Kumar of accused Company (No. 112) not present but represented by Sh. Anubhav Almadi, Advocate.

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 2

Accused Jainam Rathore (No. **130**) on bail granted by Hon'ble Supreme Court vide order dated 18.04.2022 in SLP No. 1554 of 2022 with Sh. J.H. Khan, Advocate. (in person)

Accused Nitin Rathor (No. **116**) not present but represented by Sh. Sameer Pandey, Advocate. Anticipatory bail of accused is pending for consideration before the Hon'ble High Court.

Sh. Manul Mitra, Advocate for accused Meenakshi Modi (No. **132**) and Neha Ghemawat Modi (No. **124**).

Sh. Vimal Gupta, Advocate for accused Raj Kumar Bohra (No. **171**).

Accused nos. **144,145,148,151** on bail but granted personal personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Nos. **156** and **157** on bail but exempted from personal appearance till further order vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused Nos. **163** and **164** on bail but exempted from appearance for today only, represented through Shri Neeraj, Advocate.

Accused Nos. **167, 168, 169** on bail but granted permanent exemption) vide order dated 04.09.2019, represented through Shri Rakesh Kumar, Advocate.

Accused No. **174** on bail but granted personal exemption till further order vide order dated 19.02.2021, represented through Shri Dinesh Kumar, Advocate.

Accused Nos. **180, 181** on bail but granted personal exemption till further orders vide order 22.11.2019, represented through Ms. Manisha Singh, Advocate.

Accused Nos. **1** to **70**, companies, represented through accused Rahul Modi (123) in custody in Jaipur jail.

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 3

Accused Nos. **71** to **78** , companies, represented through accused Sidharth Chauhan (**135**) on interim bail granted by Hon'ble High Court.

Accused No. **79** , company represented through accused Vivek Hari Vyas (**115**) presently on interim bail granted by Hon'ble apex Court vide order dated 17.12.2020

Accused Nos. **80**, company, represented through accused Naveen Kumar (**139**). in person

Accused Nos. **81** and **82**, companies, represented through accused Surender Singh (140) who is on interim bail granted by Hon'ble Apex Court vide order dated 29.10.2021.

Accused Nos. **84**, company, represented through accused Abhya K. Shah (**127**).

Accused Nos. **85**, company, represented through accused Jainam Rathod (No.130). On bail

Accused Nos. **86**, **87** and **88** , companies, represented through AR Ravi Kumar Tak, AR (**166**) on bail in person

Accused No. **89**, company, represented through accused Raj Kumar Bohra (171) on bail but not present

Accused Nos. **90** to **93**, companies, represented through accused Vivek Hari Vyas (**115**), on interim bail granted by Hon'ble Apex Court vide order 17.12.2020

Accused Nos. **94** to **97** , companies, represented through Shri Rahul, AR, in person

Accused Nos. **98**, company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. **99** and **100**, companies, represented through accused Raj Kumar Modi (**176**) on interim bail granted by Hon'ble Apex Court vide order 16.08.2021

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 4

Accused No. **101**, company, represented through Shri Abhishek, AR, in person

Accused No. **102**, company, represented through Shri Deepak, AR, in person

Accused No. **103**, company, represented through Shri Dharmender, AR , in person

Accused No. **104**, company, represented through Shri Pawan Sharma, AR , in person

Accused No. **105**, company, represented through Shri Anup AR , in person

Accused No. **106**, company, represented through Shri Kashi Nath Jha, AR , in person

Accused No. **107**, compnay, represented through Shri Fateh Singh, AR , in person

Accused No. **108**, company, represented through Shri Ranjan Kumar, AR , in person

Accused No. **109**, company, represented through Shri Vikas Paul, AR , in person

Accused Nos. **110**, company, represented through Shri Raju Yadav, AR , in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR , in person

Accused Nos. **112**, company, represented through Shri Devender, AR, in person.

Accused No **113** is not produced by Jaipur Jail authorities as he is shifted to Badmer Rajasthan Jail.

Accused nos. **114,120,122,123,125,126,131,134,142** are not produced by Jaipur Jail authorities as they are shifted to Jodhpur Jail.

Proceeding under Section 174-A Cr.PC initiated vide order dated 27.07.2022 against accused Vinay Kumawat (119), Sudhir Punia (143), as proclaimed persons.

None for the accused Nos. **83**.

Proceedings qua accused Mahender Kumar Tak (155) and Vijay Kumar Jindal (175) abetted vide order dated 25.03.2022.

(Production warrants of accused)

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 5

Accused Rajiv Kumar Rana (No. 177) has not been produced through video conferencing as video conferencing is not working due to some technical error. Now, production warrant of accused Rajiv Kumar Rana (177) be issued for 08.2.2023, through video conferencing.

Accused namely Mukesh Modi (113) not produced by the Jail Authority by the District Jail Jaipur. It has been reported by the Naib Court that accused Mukesh Modi (113) has been transferred to District Badmer Rajasthan from District Jail Hanumangarh Rajasthan. Hence, production warrant of accused Mukesh Modi (113) be issued to District Jail Badmer, Rajasthan for producing through video conferencing on 8.2.2023.

Accused namely Rahul Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) have not been produced through Video Conferencing from Jodhpur Jail. Let, the production warrants of accused Rahul Modi (114), Vaibhav Lodha (120), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) be issued to the Superintendent, Jodhpur Jail for 08.2.2023 for appearance of accused through VC.

Warrant of arrest issued against accused namely **Mahesh Kumar Tak (187)** received back unexecuted. The bail application of Mahesh Kumar Tak is pending in this court. It means that he has come before the court. Therefore, till decision of bail application, at this juncture no coercive step in required to be taken.

(Approvers)

Learned Special Public Prosecutor has further informed that there are five accused persons namely **Parveen Kumar (161), Nimesh Kumar**

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 6

Ramesh Soni (182), Ritu Raj Singh (183), Shashank Singh Rathore (185), Naveen (162) and Jitesh Kumar Parmar (186), who were granted bail by Hon'ble High Court on the ground that they shall co-operate with the prosecution, as approvers. He also intimated that applications of these accused are on record to this effect. He further requested to record their statements in accordance with law. Heard. In view of the directions issued by Hon'ble High Court, all the said accused are directed to remain present on **08.2.2023** for recording of their respective statements as approvers. Learned Prosecutor is directed to update himself with latest law and procedure to assist the Court in respect of recording statements of approvers.

(Awaiting further orders)

As far as accused Siddharth Chauhan (**135**) is concerned, counsel appearing on behalf of accused has placed on record copy of orders dated 24.11.2022, passed by Hon'ble High Court in CRM-M-27904-2022 (O&M) adjourning the PO proceeding qua accused Siddharth Chauhan (**135**). Heard. The PO proceedings qua accused Siddhartha Chauhan (**135**) is adjourned beyond the date fixed in the Hon'ble High Court. Now to come up on **8.2.2023** *for awaiting further orders of Hon'ble High Court.*

Similarly, the Hon'ble High Court has pleased to adjourn the P.O. proceedings qua the accused Nitin Rathore (**116**), Abhay K. Shah (**127**), Jinender Vyas (**No.118** CRM-M-3174 of 2019); Paras Bolia (**No. 121** CRM-M-25412 of 2020); Manish Chaudhary (**No. 128** CRM-M-27804 of 2022); Deepak Shirmali (**No. 129** CRM-M-25084 of 2022); Parkash Chand Purohit (**No. 133** CRM-M-25516 of 2022); Shinder Pal Singh and Gurbeer Singh Sandhu (**No. 137 and 138** CRM-M-27845 of 2022); Aditya Sarda (**No. 141** CRM-M-17518 of 2022); Nazma Khan and Shabbir Khan (**No. 152 and 153** CRM-M-25052 of 2022 and CRM-M-25054 of 2022); Naveen Chaudhary (**No. 162** CRM-M-25508 of 2022); Shyam Bihari Gupta (**No. 165** CRM-M-

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Page No. 7

17096 of 2022); Sudhir Mehta (No. 170 CRM-M-9417 of 2021); Saurabh Tak (No. 172 CRM-M-24299 of 2022) and Rajiv Kumar Rana (No. 177 CRM-M-13648 of 2022) beyond the date fixed by Hon'ble High Court i.e. 31.01.2023. Hence, PO proceedings qua the above-said accused persons is adjourned to **8.2.2023** and also for awaiting order of Hon'ble High Court.

Accused namely Vivek Harivyasi (**115**), Surender Singh (**140**), Raj Kumar Modi (**176**) are on interim bail granted by the Hon'ble Supreme Court vide orders dated 17.12.2020, 29.10.2021 and 16.08.2021 respectively. Now to come up on **8.2.2023** for appearance.

Accused namely Vijay Shukla (**149**) has been granted interim protection by the Hon'ble Supreme Court vide order dated 26.10.2021. Accused present in person. Now to come up on **08.2.2023** for appearance.

Accused No. **117** Priyanka Modi on regular bail in terms of order dated 07.02.2022 passed by the Hon'ble Supreme Court. An application seeking exemption on behalf of accused Priyanka Modi has been filed on medical ground. Heard. In view of grounds the exemption of Priyanka is allowed for today only. Now to come up on **8.2.2023** for appearance.

(Accused Not Appeared Exemption Filed)

Applications under Section 317 Cr.P.C. for dispensing with the personal appearance of the applicant/accused and permitting them to cause appearance by their pleaders have been filed on behalf of accused Ajit Singh (150) Megha (**163**), Damyanti Bhandari (**179**) and Indu Tak (**164**), Priyanka Modi (**117**), Raj Kumar (**171**) and Ichita (**180**). Heard. Keeping in view of the grounds mentioned in the application, the aforesaid applications are allowed and the accused Ajit (150) Megha (**163**), Damyanti Bhandari (**179**) and Indu Tak (**164**), Priyanka Modi (**117**), Raj Kumar (**171**) and Ichita (**180**) are exempted from personal appearance. Now to come up on **08.2.2023**, the date already fixed.

(Application seeking permanent exemption)

An application for permanent exemption of accused Neha Kataria (181), filed today. As the proceedings has been stayed and also granted personal exemption till further orders vide order 22.11.2019. Hence, adjourned to **8.2.2023**, for further orders.

No further order of Hon'ble Rajasthan High Court against accused Meenakshi Modi (132) and Neha Ghemawat Modi (124), received. Now to come up on **8.2.2023** for further orders.

The bail application of Shiv Raj Sharma (No.160) is pending before this court. It means that he has come before the court and has given shelter of law. Therefore, further steps regarding securing his presence will be taken in due course and no coercive step will be taken. Now, to come up on **08.2.2023** for appearance.

learned SFIO has placed on record copy of order dated 8.12.2022 passed by Hon'ble High Court in CRM M 55780-2022 vide which, anticipatory bail application of accused Piyush has been declined with the direction to surrender him before said court within one week from this order. In this way, at this juncture, this court is under obligation to wait for appearance of accused Piyush Aggarwal.

Date of order: 9.12.2022

(Dr. Virender Parshad)
Additional Sessions Judge-cum-
Special Judge, Gurugram.
(UID No. HR0082)